

Order 65, are the words, "*Without requiring an answer to the amendments*", which are omitted in the above Order, because it is here optional with the defendant to answer or not, the process of contempt to compel an answer being under the 30th Order, of 1850, abolished, and the plaintiff has his remedy by the traversing note under the 23rd Order of 1850, or by proceeding to get the cause set down to be heard *pro confesso*, under the 33rd and following Orders of 1850.

In the English Order 116, which answers to the above Order 66 of 1850, the subpoena is directed to be served on the "*Plaintiff*". The above 66th Order requires its service on all parties to the cause, and such is the general practice in England, for it would be unreasonable to expect another defendant to be prepared for the argument of the cause without any notice.

Meaning of
Article One,
Order 64.

The above Orders then substantially assimilate the practice to the English practice under the Orders of 1845, upon which there have been some decisions. The words "*last of the answers*," in the first article of the English Order 114 (above Order 64), mean, the last of the answers of that defendant who is moving to dismiss. They might be supposed to mean the last answer filed by any defendant. (*Dalton vs. Hayter*, 7 Beaven, 586; *Sprye vs. Reynell*, 10 Beaven, 351.)

Any Defendant
may move to
dismiss, one
month after his
own answer in.

So it would appear, that after one month after the answer of any defendant (for, there being now no exceptions to the answer, each defendant will only file one, except a supplemental answer on leave of the Court), that defendant may move to dismiss, whether the other defendants have answered or not; or, if they have answered, no matter how recently. The Court can, however, give such time to reply, or to amend, as on the argument of the motion the Plaintiff may seem justly entitled to. It is not meant, that, as soon as the time arrives for the motion to dismiss, the defendant may insist on the Order, under any circumstances. And see Order 68 of 1850. The object of allowing the motion, is to enable the defendant to get the cause

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